

STEPHEN H. BRANCH'S

ALLIGATOR.

VOLUME I

No. 21

SEPT. 11, 1858

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*** START OF THE PROJECT GUTENBERG EBOOK STEPHEN H.
BRANCH'S ALLIGATOR, VOL. 1 NO. 21, SEPTEMBER 11, 1858 ***

Transcriber Notes

Obvious printer errors, typos and missing punctuation fixed. Archaic and inconsistent spelling, and inconsistent hyphenation retained.

A couple of pointing hand characters in the text have been replicated using the “White right pointing index” Unicode character (U+261E). If the device font does not support this character, ☞, it may not display correctly.

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What Peter Said.	<u>1</u>
A New Scheme.	<u>1</u>
Puttyman turned Merriman.	<u>1</u>
How to Shed a Ray of Light.	<u>1</u>
Out with Them.	<u>2</u>
The Tail of the Cable.	<u>2</u>
The Paupers at the Town Table.	<u>2</u>
Fish and Fowl.	<u>3</u>
Cable Jollification.	<u>3</u>
A Great Chance for Peter.	<u>3</u>
A Wonderful Invention.	<u>3</u>
<i>TO THE EDITOR OF THE ALLIGATOR.</i>	<u>3</u>
The Genuine Cable.	<u>4</u>
Advertisements	<u>4</u>

STEPHEN H. BRANCH'S
ALLIGATOR.

Volume I.—No. 21.

SATURDAY, SEPTEMBER 11, 1858.

Price 2 Cents.

STEPHEN H. BRANCH'S ALLIGATOR.

What Peter Said.

The great Cable celebration at the Crystal Palace was apparently a cut and dried affair, for the few speeches transmitted to us by the press were not only written, but printed in advance of delivery—a comfortable method of reporting, very satisfactory, but not quite literal, as well as undignified in the orator of the day reading off his speech, schoolboy-like from the crown of his hat. Peter had his say, and a very funny say it was, so much so that we are inclined to believe that Archbishop John, while “stuffing” at Long Branch, intentionally quizzed that venerable duck. Peter, when it came to his say, was chuck full of electricity; he sparkled and snapped like an aurora borealis; he was better charged than the cable, and his eloquence went off with a series of flashes like the detonations of a Leyden jar. He told us “his labors which required the indomitable courage, the far-seeing and electrifying mind of Cyrus W. Field to inspire and stimulate.” Cyrus then is the electrical eel of this new era, and should be carefully preserved within non-conductors from fear of shocking accidents. Then Peter got poetical, and travels in the great garden of the world within and the world without, and clothes a man there with power. This great garden could not be that of

Eden, for there nobody went clothed with anything. And then Peter got surgical, and goes into midwifery, calling the cable “the umbilical cord that binds the mother continent to the child.” Then Peter grew prophetic, and tells us what electricity will do some day or the other. And then Peter got enigmatical, and didn’t know what he did say, and then he said that language failed him, and upon this giving out he sat down and looked profound at everybody and everything for the remainder of the exercises, bestowing on the audience an occasional yawn.

A New Scheme.

So the repairs to the City Hall are to be made by the jobbing system. The contract system, money-making as it is, is too liable to be exposed to the inspection and judgment of the people, but a large job that is split up into a dozen or more little ones and given out to as many individuals, pays better, and can be more secretly conducted; therefore this job which might be done reasonably low by a contractor, is to be *highly jobbed* out piecemeal. Verily, we live in a great age, have great city fathers, an illustrious Mayor and plenty of paint and putty.

Puttyman turned Merriman.

The anecdotes of great man are the treasures of local history, and are generally presumed to lend some light upon the trivialities of State life. Daniel F. Tiemann is reported to have remarked, in a serious manner it must be observed, for Daniel is thought to be a teetotaller, and rarely dons the motley, that when the Lord Mayor of London hears of our celebration and burning of the City Hall, he would return the compliment by setting fire to the Mansion House. There can be no doubt that this charitable ebullition of etiquette will be accomplished, and were it not for the extreme modesty of the worshipful Tiemann, there is little doubt but that his Lordship would be induced to re-enact the part of Guy Fawkes, and throw in the two houses of Parliament by way of a superior pyrotechnical display. The thanks of the British public are unquestionably due Puttyman for his moderation, for were he to will it, the Atlantic Cable might require the immolation of Gog and Magog, and, peradventure, the importation of the Bow Bells. But Puttyman says he was only joking, and in alluding to the Metropolitan edifice, intended merely to call forth a sally of wit instead of a blaze of pure genuine flame.

The first appearance of Mr. Puttyman in his new character of Merriman, is highly creditable to a new beginner, and we have little doubt that after a suitable intellectual training by Mr. Gossin, and a few stray tricks from Signor Carlo, he will be able to perform a creditable engagement with Dan Rice. Indeed, we do not know but with the aid of lamp-black and a dictionary, he might be converted into an excellent Brother Bones, if not a joker in all the spirit of Tom Brown, and the quaintness of the late inveterate Horn. When other occupations are gone. Mr. Puttyman, from this specimen of jocularitv, is entitled to a front seat in the saw dust.

EUREKA.—There having been great inquiry made as to whom the statue in the City Hall Park represents, we are happy to inform the inquisitive that we learn by a dispatch sent us by the Atlantic Telegraph, that it is the *fac simile* of the great Puttyman.

A GREATER UNION THAN THE TELEGRAPH.—The political junction between Peter Cooper and Tiemann. The cable can't stand comparison with the cement of putty and glue.

How to Shed a Ray of Light.

At the Cable demonstration on the 1st, Aldermanic politeness showed itself in its true colors by the virtual expulsion of reporters from the Crystal Palace. Immediately previously to the commencement of the exercises, Mr. Lowber, a protege of the reformer's, whose name may be remembered in connection with a claim against the city, ordered the removal of the tables and benches allowed to the press. Alderman Thomas McSpedon, whose name will become famous to the press before the whole of the documents in the Hall of Records are printed, forthwith directed the removal of the pressgang, which, like the Joseph Walker, was held by Mr. Lowber to be a nuisance. This summary proceeding was characteristic of aldermanic wisdom, by forgetting that while the wide world was interested in the cable, our astute gentleman imagined that he had it safely coiled in his breeches pocket. Luckily all the addresses, which had the sanction of the Common Council, were in print for a few days before their delivery, and that portion of our municipal greatness has escaped certain loss. Unfortunately there are two sides to a question as well as an address, and as the British recipients of the addresses, as well as the Captain of the Niagara, were not up to the mysteries of the Tea-Room, their replies are forever lost. We have doubtless lost the wheat and secured the chaff.

STRANGE, IF TRUE.—We read in the *Herald* the other day, that, in the opinion of that oracle, the successful laying of the Trans-atlantic Cable would change the whole moral aspect of human affairs—the *Herald* included. Now we must confess we do belong to that class of persons which believe that physical agency and morals are intimately allied, and that the great achievement of submerging the cable will produce more or less a moral effect. Still we are doubtful of the *Herald*. We are equally doubtful

whether the successful laying of two cables and a half dozen other scientific victories much greater than anything that has yet transpired, could produce an improvement in the moral character of the *Herald*. Bennett is too great and too hardened a sinner. Still we have heard of repentance at the eleventh hour.

A GOOD IDEA.—Our devil suggests that the great Puttyman would do well to hire Jobson to edit the *Satanic*. This might be beneficial to Puttyman, but we doubt whether Mr. Jobson would consent to lend his brain in such a filthy channel. The great French historian can do better.

THE ALLIGATOR.

New York, Saturday, September 11, 1858.

Out with Them.

Our people have by this time purchased the significant lesson that it is impossible to create an elective judiciary, worthy of esteem and capable of discharging the onerous functions committed to their custody. The learned Sancho Panza observed, with respect to the impossibility of creating silk purses out of sows' ears. We can do likewise as to the utter inability of manufacturing judges, worthy of the ermine, from raw material, such as Mr. Recorder Barnard and City Judge Russell, neither of whom would be selected to decide upon the merits of a cock fight, much less to determine the rights of personal liberty. Is the evil to be longer endured, to be

incessantly repeated, or are the people to take the matter in their own hands that we may divest ourselves from the burdens which Sinbad-like we are compelled to bear on our shoulders?

We have thoroughly tested the question of an elective judiciary, both theoretically and practically, and we have arrived at one conclusion—that we obtain politicians instead of judges, and thereby jeopardize the very foundation of our national liberties. We have done more, and openly pandered to the lowest vice in suffering the right of ballot to be prostituted in order that the most unworthy of men may creep into the judiciary. We have emptied the tap-rooms and bar-rooms of their tenants, and have thus sullied the dignity of the ermine. We have also done everything in our power to neutralize the benevolent intentions of our republican institutions, by corrupting the only safeguard for their perpetuation. And this series of calamities is chiefly attributable to the introduction of the political manœuvre of rendering the judiciary elective, and thus we have sacrificed the wisdom of our revolutionary ancestors.

A few years ago, when the judiciary were appointed by the State Senate, and served until physical infirmities limited the term, the New York Bench were unrivalled for learning, courtesy and literary acquirements. Our criminal judges were particularly distinguished, and the name of Richard Riker, for many years Recorder of New York, will be remembered as that of a worthy and respected magistrate. Whence have we receded to secure Russells and Barnards? Nay, we have even gone to the length of creating offices which are perfectly useless, and filled them with idle incumbents. Will any man say that the City Court exists as a matter of necessity, or that the duties of the officers do not belong to other authorities? If not, why not erect a court-room and not compel its presiding dignitary to lounge a hanger-on the Court of Sessions. Probably it is better for the common weal, and more in accordance with Mr. Russell's antecedents, that he be suffered to continue in this way of life, in which the extent of mischief may be kept within limit. In the approaching constitutional convention, the question of an elective judiciary will be fairly at issue, and it is one duty that we owe to ourselves to re-organize the magistracy, that its ancient character for integrity and truth may be revived and perpetuated. This work of purification will probably be strenuously opposed by those of our politicians, who are dependent to the gangs of shoulder hitters, and brothel pimps, now infecting our city and rendering the elective franchise a

political caricature. If we suffer this opportunity to escape us, we are unworthy the character of freemen, and deservedly the cellars of a judiciary, as incompetent as it is useless, and as useless as it is expensive.

The Tail of the Cable.

We have had our gay old time; our citizens have had fireworks, and crackers, and cheese; our boys have had a turn-out, and our country cousins have had a most stunning display of municipal greatness,—in a word, we have glorified God, the Atlantic Cable, and the Field family. This is all very well in its way; but when we come to pay for the piping, we naturally inquire the reason for all this fuss and commotion—for the only thing which appears to be quiet is the cable itself, which neither works nor gives evidence of any inclination towards labor. Now that we have had the fun, let us pay for it.

The people of England, who own the Telegraph, each end being limited to British soil, and the whole line under control of British capitalists, seem to have rejoiced over the success of the great event of the age in a most rational and sensible manner, while we have apparently gone mad with joy over an affair which, in nowise, can be construed into a national subject. Degrading as it may be to our personal pride, Peter Cooper, the Field family, and Archbishop John, to the contrary notwithstanding, the Atlantic Telegraph is essentially an English triumph; and in expending a large sum of money in an ebullition of passing insanity, our citizens have only rendered themselves subjects for merriment. Who will deny that, although the project of an Atlantic Telegraph was first broached on this side of the Atlantic, almost the entire credit of its success has been committed to British hands. The money was raised in England, and three out of four vessels, engaged in the enterprize, bore the British flag. And now have we any just excuse to run mad with joy, and to add some fifty thousand additional taxes to our already over-taxed community?

The very character of the procession which went through our streets was a polite satire upon the occasion, as it can mainly be regarded as an illegal

method of advertising one's wares, which, if persisted in, would prove ruinous to the Sunday papers. We had cracker bakers, alcohol dealers, gas stoves, and all that sort of thing, from the beginning to the end of the chapter; and one, unacquainted with the nature of municipal rejoicing, would conceive the demonstration to have been the American Institute house-moving on the first of May. And now that the reign of folly has past, and the festivity of the occasion wasted into air, a second, sober thought suggests to us that we have been manufacturing a very large quantity of excitement upon a very small capital; and the more serious this consideration will become as the moment of payment presses on us. We have no right to squander public moneys, no more than that of embezzling from private persons; still we are well aware that a different standard of morality governs the actions of officials from those of the same beings in a mercantile character. Now that we have reached the tail of the cable excitement, let us propound a simple query: What have we gained by all this frenzy beyond the glorification of one or two individuals, who have suddenly discovered themselves to be great? We have foolishly spent a large sum of money—we have made an exhibition of ourselves, and have no equivalent to show in exchange for our funds and our honor. By the tail of the cable hangs a curious tale indeed.



TOO TRUE BY HALF.—One of our City Fathers, upon being solicited for a ticket to the Cable Dinner on the 2d of September, refused, giving as a reason that he could not venture to invite any of his friends, from fear of introducing improper characters.

The Paupers at the Town Table.

If any man hangs around a public house, dependent upon the charity of visitors for a drink, even if it be absolutely necessary to his health, he is commonly honored with the epithet of a “bummer;” but when a highly distinguished politician or other man, too indolent to do his own work and subsisting from the public till, hangs around the City Hall, awaiting the chances at the public table, we fail to recognize the similarity of his condition with the dry and athirst of the common tap-room. Now we are blind enough not to see the distinction between these two classes of worthies, and we are stupid enough to enumerate both as under the same category. It matters little to us whether the guzzler at the Metropolitan feeds at the public expense, or Brown at the Pewter Mug drinks from the involuntary contributions of Jones or any other private individual. In both instances the principle is the same, and a man who dines at the public expense, even if it be in the name of Cyrus W. Field, is as much of a sucker as the loungeur who insists upon participating with you in a smile. They are both paupers, and should be deservedly esteemed as such by an intelligent community. There is nothing like calling things by their proper names, although they may be distasteful to our so-called Reformers.

It is exceedingly strange that any body of men, pretending to advocate retrenchment in our finances, will so barefacedly and undisguisedly seize upon a large sum of money belonging, as they honorably admit, to a most over-taxed municipality, and squander it for the least profitable of animal passions. Three thousand dollars could be better expended in a monument or other testimonial of our Cable joy, than to be guzzled down by a bevy of hungry hounds, who would have claimed boon-companionship with Judas Iscariot to get an invitation to the Last Supper. If it be necessary to express our joy, why not do it in a rational manner, like men gifted with reason, and

not guzzle and swill like beasts of the field? Still the invincible selfishness of our Aldermen demanded an Aldermanic banquet, whence a majority of our officials will in all probability be carried home on a shutter, if they do not succeed in procuring accommodations at the public expense in the Fifteenth Ward Station. Where better to end the bacchanalian revel? We had believed that, when the iniquity of the tea-room was suppressed, and the bevy of loafers who were wont to breakfast, dine and sup from the free lunch of our Municipal tea-room, the whole fabrick of guzzling would be cast down, so that every intelligent and reputable man would conceive it a species of larceny to dine at the expense of the poverty-stricken tax-payers. But that which is bred in the bone cannot come out from the skin, and this habit of dining is too deeply seated to be eradicated from these veterans at the public table. It would be a curious study for a statician to compute the amount of groceries, wet and dry, consumed by some of these well fed officials, and, when published, would afford a very instructive lesson in municipal economy. We will venture to say that Simeon Draper alone, in the course of his public services, has deemed it a part of his duty to consume edibles and drinkables to the extent at least of three thousand dollars. Here, then, is a question for disputation at the Institute that, if the official keep of one man costs such a sum, how much would it cost to support an army.



☞ God made man, and he rested; then he made woman and rested; then he invented the Beecher family and rested again, and then he created the Field family; and there, let us hope, we come to a full stop.

Fish and Fowl.

Notwithstanding the heavy demonstrations of the Common Council, by word of mouth and by strength of lung in favor of the Atlantic Cable, it seems that the reception of the crew of the Niagara was entirely overlooked by these distinguished characters, who, in their ovations to Mr. Cyrus W. Field, and such like magnates, ignored the existence of such a poor set of individuals as the absolute toilers, who live by the sweat of their brow. To make up for this deficiency in courtesy, a few gentlemen invited and gave a species of demonstration, wherein they expected to realize something digestible for the poor Jacks of our navy, who, in an humble way at least, contributed to the success of the great event. Well, these gentlemen in hiring a room wherein the speechification could be made, naturally stumbled upon the great Peter Cooper Institute, first from the connection Peter had with the tail end of the cable, and, secondly, from the fact that they labored under the impression that the building had been given to our municipality for the encouragement of arts and sciences, and, assuredly, what could be more encouraging to science than a hearty meal after scientific labor?

The committee waited upon the proprietor of the Institute and discovered the nightly rent for the use of the hall of the building, so magnanimously donated to the city, to be \$100. However, the breasts of landlords are not always of stone, and the illustrious Peter, taking into consideration the object and the occasion, kindly consented to receive from the friends of poor Jack but one-half the usual price for the loan of a building, vulgarly conceived to be public property. Now who dares to assert that Peter, the great and liberal minded Peter Cooper, never does things by halves?



Cable Jollification.

Cyrus, the great, has been out on a fishing excursion; he has fished with a long line, a keen hook, fine bait, and in deep water—caught a fine kettle of fish and many shiners, over which the Cooper guild and corporation feel disposed to make themselves jolly. This may all be very well, but to us it looks very much like using an opportunity to make a display and have a good time generally to glorify somebody at the expense of the people.

With respect to the merits of this cable, Franklin bottled lightning, Morse discovered the telegraph principle, Maury the telegraph plateau, and Cyrus, with the assistance of Brooks, put the two together, for commercial purposes, for which Cyrus is to be glorified forever, while Franklin, Morse and Maury are forgotten. The whole cost of the cable celebration, to the city, will not fall much short of \$150,000. Cold winter will soon be here, and thousands cold and hungry, without the means to supply themselves with food and fuel; and we venture to say not \$500 could be raised from the corporation outside the usual appropriations, to keep them from starvation or freezing. All this is the result of a nice little arrangement by the city fathers, who are mighty fond of guzzling at the public crib whenever an excuse can be manufactured. This cable laying furnishes a good one, but the cable is laid, so let “God be praised,” but not until Cyrus has had his share.



OVERDONE.—It is now understood that the persecutors of Mr. Branch have separated from co-partnership with Recorder Barnard, whom they charge with having overdone matters. It is a pity, but Mr. Barnard will learn that he cannot serve both God and man at the same time.

A Great Chance for Peter.

Now that we are going to have a new story on the City Hall, would it not be an excellent opportunity to try the highly ingenious scheme of the venerable Peter Cooper, of converting the new portion of that public edifice into a water-tank? What a refreshing idea in the dog-days!

If Peter had only studied political economy as deeply as he has hydraulics, he might have improved his scheme of fire-extinguishing and rendered it at least self-paying, if not a source of revenue. During the summer months, this artificial pond could be rendered an excellent bathing-school, where, beneath the supervision of some of the unoccupied police, small boys could be allowed, at a shilling a head, to indulge in a hydropathic luxury of a dive and come up again. Beyond this, during the winter, the pond being subject, we suppose, to the ordinary afflictions of a cold, might be advantageously employed for the healthy relaxation of skating, during which performance the venerable Peter may patronize the public by an exhibition of his highly respected person, after the manner of his great predecessor, Wonter Von Twiller. By this ingenious arrangement the great water-tank of the great Peter may be rendered as great an institution in a sanatory point of view, as his Institute is to the intellectual world of our Atlantic Metropolis. Peter should be a water-cure doctor.



A Wonderful Invention.

Much has been said about the Albany Regency, whose lawgivers are Thurlow Weed, Seward & Co., but they cannot compare with our great Puttyman, Cooper, Draper & Co. For cunning reforms, soft soap and putty they have no competitors. While the former has dined on politicians, the latter has luxuriated on live alligators—of the short and long branch species—until they are looking fat and greasy. We advise Weed and Seward to look well to their pickets and walls at Syracuse on the 8th of September, or our great city reformers will not leave them an atom of power or greatness. Let Weed remember that these great lights of Metropolitan glory, have a *peculiar* way of doing business, unknown to the scientific of the present day. The invention is said to be despotic and arbitrary in its sway over the masses, but this can hardly be, for our Metropolitans are clear-sighted people and would certainly have made the discovery if such was the case; hence their popularity must originate from the true greatness of their invention and the entire approval and encomiums of the Press during the last three or four weeks. It is seldom that any new invention confers honor, fame and fortune upon the inventor, but this “Branch Incarceration” invention is a new era in science, law and philosophy. The inventors are deserving of a monument to perpetuate their memories to future posterity. Oh, great Puttyman, little did you think, when superintending your humble paint manufactory, that you would ever be connected in such a great discovery. How great, how powerful is genius—God-like. Praise God, Puttyman, that you and your fellow-inventors are not like other men.

CITY HALL BELL.—This loud, cracked-toned sentinel, having become ashamed of the corruption in and round the City Hall, has left the top of that institution and located itself outside on a wooden tower.

CENTRAL PARK.—Supposed to be completed about the year 1880—
judging by the last two years' progress. Cost, impossible to estimate.

TO THE EDITOR OF THE ALLIGATOR.

NEW YORK. August 23, 1858.

SIR:—Hitherto I have refrained from addressing communications to the newspapers upon *any* subject of interest to the community, feeling better satisfied in reading the comments of persons other than myself. The course of the prosecution towards the unfortunate Mr. Branch leads me, for the first time, to speak to the public through the columns of a public journal, and suggests to me a number of ideas which, I think, bear upon the subject. I am not a personal friend of Mr. Branch, never having had half a dozen words of conversation with him. I look upon the prosecution (or, more properly speaking, the persecution) of Mr. Branch as a wholesale violation of the rights and privileges of the citizens of New York, and a violent outrage upon the spirit and tenor of our laws. For the first time in the history of our criminal jurisprudence, we find a man charged with the commission of an offence against our laws, arrested, indicted, tried, convicted, sentenced, and placed in the vilest servitude, all within the space of two short weeks. In this extraordinary trial we see, and painfully too, the establishment of a precedent to take away our rights and subject our persons and property to the ruthless grasp of an interested prosecution. 'Tis true that the prosecutors in the case of Mr. Branch were *wealthy and in positions of influence, and it was therefore to be expected that justice should lean toward them*, to the taking away of the rights of a citizen who could not boast of *wealth*. I assert, and without fear of truthful contradiction, that two-thirds of our community to-day sympathize with Mr. Branch, and look upon the course of the prosecution as a gross violation of their own individual rights, and such a violation as loudly calls for the indignation of the people;

and it is indeed pleasant to reflect, that to-day the persecutors of Mr. Branch are entitled to, and willingly receive, the supreme contempt and unmitigated scorn of every lover of justice; and I tell you, sir, *that* scorn and contempt will manifest itself at the ballot-box to such a degree, that *certain persons* will wither beneath the loud condemnation of the honest citizen; and the time will come when justice shall not be thwarted by the mere wink of two or three *self-interested* individuals, who cannot boast of any *particular merit*. I take the position, that whether Mr. Branch be guilty or *not* guilty, the trial was unfair and the sentence unjust; and no evidence appears to my mind causing me to doubt but that Mr. Branch's assertions were correct. Would it not have been much better, in order to the proper vindication of the character of the person against whom the charges were made by Mr. Branch, that all the circumstances connected with the affair should have been brought to light by an even-handed, above-board trial? Then, if the charges were false, the prosecution would have established their honor and integrity in a manner which would have satisfied the community, and not led them to look, as they now do, with suspicion. Beyond all this, Mr. Branch was denied the right of a preliminary examination; thus showing that the first step taken by the prosecution was illegal and unjust. These facts, when presented to the mind of an enlightened public, present such formidable proof of the injustice practised towards Mr. Branch, that it is impossible to arrive at any other conclusion than that Mr. Branch has been more sinned against than sinning. In conclusion I shall say, that, from what I have discovered of public opinion, it is high time that something should be done to rid ourselves of the present administration, and to put in office men who can be relied upon; believing as they do that Mr. Branch has been the victim of political persecution.

Let us hope that the time will soon come when the rights of the community will be preserved, and their persons and property protected by an enlightened, intelligent and honorable judiciary.

VAN.

The Genuine Cable.

No single enterprise better illustrates the go-ahead-iveness of Americans than the purchase by Messrs. Tiffany & Co., the Broadway jewellers, of the entire surplus of the Atlantic Telegraph Cable, left on board the Niagara. They have no possible use for it, beyond the selling of pieces as specimens to be preserved as curiosities; and yet, on this speculation they have advanced some \$30,000 or \$40,000 hard cash. In some cities, and some countries they would inevitably find themselves “stuck,” as the newsboys say; but here, they will, assuredly and deservedly, reap a rich reward. They are selling the pieces, plain and mounted with *fac simile* certificates by Mr. Field, at all prices, from 50 cents upwards, about as fast as they can cut them off.—*Sun*.

Now, of what real utility is a piece of this supposed cable? None whatever. We strongly suspect hundreds of mechanics are employed daily in manufacturing a *fac simile* of the Atlantic Cable, and doubtless will continue to be so employed as long as a purchaser for a piece of “that Cable” can be found. For gullibility, New Yorkers are certainly the *greenest* of the human species. Still, perhaps, an imitation of “that Cable” will answer every purpose, and enrich the retailer at the expense of the credulous. We intend to get a monster “cable” manufactured, “to order,” to cable up our *Alligator* o’ nights.

A showman giving dramatic entertainments in Lafayette, Ind., was called upon by Terrell, of the *Journal*, who tendered a bushel of corn for admission. The manager refused to accept of it, telling Terrell that all the members of his company had been corned for the past six weeks. Our city fathers have been *shampaigned* and *cabled* for the last two weeks.

Our devil thinks it a national loss that the Limekiln man did not live long enough to be elected Mayor. No doubt of it—lime is more substantial than paint.

Wonder if the great Putty-man has ever paid Bennett that little bill for paint advertising? We suppose so, as Bennett is now using plenty of *varnish* of the putty calibre.

Advertisements—25 Cents a line.

Credit.—From two to four seconds, or as long as the Advertiser can hold his breath! Letters and Advertisements to be left at No. 114 Nassau-street, second story, front room.

COREY AND SON, MERCHANT'S EXCHANGE, WALL street, New York, Notaries Public and Commissioners—United States Passports Issued in 36 hours.—Bills of Exchange, Drafts, and Notes protested,—Marine protests noted and extended.

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OREL J. HOLDEN.

GERARD BETTS & CO., AUCTION AND COMMISSION Merchants,
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FALL ELECTION.

To the Sheriff of the County of New York:

A GOVERNOR, in the place of John A. King;

A LIEUTENANT GOVERNOR, in the place of Henry R. Selden;

AN INSPECTOR OF STATE PRISONS, in the place of William A. Russell;

All whose terms of office will expire on the last day of December next.

A REPRESENTATIVE in the Thirty-sixth Congress of the United States, for the Fourth Congressional District, composed of the Fourth, Sixth, Tenth and Fourteenth Wards in the city of New York;

A REPRESENTATIVE in the Thirty-sixth Congress of the United States, for the Fifth Congressional District, composed of the Seventh and Thirteenth Wards of the city of New York, and the Thirteenth, Fourteenth, Fifteenth and Sixteenth Wards of Brooklyn;

A REPRESENTATIVE in the Thirty-sixth Congress of the United States, for the Sixth Congressional District, composed of the Eleventh, Fifteenth and Seventeenth Wards in the City of New York;

A REPRESENTATIVE in the Thirty-sixth Congress of the United States, for the Seventh Congressional District, composed of the Ninth, Sixteenth, and Twentieth Wards in the City of New York;

And also, a REPRESENTATIVE in the Thirty-sixth Congress of the United States for the Eighth Congressional District, composed of the Twelfth, Eighteenth, Nineteenth, Twenty-first, and Twenty-second Wards in the City of New York.

SEVENTEEN MEMBERS OF ASSEMBLY:

A SHERIFF, in the place of James C. Willett;

A COUNTY CLERK, in the place of Richard B. Connolly;

FOUR CORONERS, in the place of Frederick W. Perry, Edward Connery, Robert Gamble and Samuel C. Hills;

All whose terms of office will expire on the last day of December next.

The attention of Inspectors of Election and County Canvassers is directed to Chapter 320 of Laws of 1858, a copy of which is printed, for instructions in regard to their duties under said law, "submitting the question of calling a Convention to revise the Constitution and amend the same to the people of the State."

AN ACT to submit the question of calling a Convention to revise the Constitution and amend the same, to the People of the State:

Passed April 17, 1858—three-fifths being present.

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

SECTION 1. The Inspectors of Election in each town, ward, and election district in this State, at the annual election to be held in November next, shall provide a proper box to receive the ballots of the citizens of this State entitled to vote for members of the Legislature at such election. On such ballot shall be written or printed, or partly written and printed, by those voters who are in favor of a Convention, the words: "Shall there be a Convention to Revise the Constitution and amend the same? Yes." And by those voters who are opposed thereto, the words: "Shall there be a Convention to Revise the Constitution and amend the same? No." And all citizens entitled to vote as aforesaid shall be allowed to vote by ballot as aforesaid, in the election district in which he resides, and not elsewhere.

§2. So much of the articles one, two and three, of title four, of chapter one hundred and thirty, of an act entitled "An act respecting elections other than for militia and town officer," passed April fifth, eighteen hundred and forty-two, and the acts amending the same, as regulates the manner of conducting elections and challenges, oaths to be administered, and inquiries to be made, of persons offering to vote, shall be deemed applicable to the votes to be given or offered under the act; and the manner of voting and challenges, and the penalties for false swearing, prescribed by law, are hereby declared in full force and effect in voting or offering to vote under this act.

§3. The said votes given for and against a convention, in pursuance of this act, shall be canvassed by the Inspectors of the several election districts or polls of the said election in the manner prescribed by law, and as provided in article four, of title four, of chapter one hundred and thirty of the said act, passed April fifth, eighteen hundred and forty-two, and the acts amending the same, as far as the same are applicable; and such canvass shall be completed by ascertaining the whole number of votes given in each election district or poll for a convention, and the whole number of votes given against such convention, in the form aforesaid; and the result being found, the inspectors shall make a statement in words, at full length, of the number of ballots received in relation to such convention, and shall also state in words, at full length, the whole number of ballots having thereon the words, "Shall there be a Convention to revise the Constitution and amend the same? No." Such statements as aforesaid shall contain a caption, stating the day on which, and the number of the district, the town or ward, and the county at which the election was held, and at the end thereof a certificate that such statement is correct in all respects, which certificate shall be subscribed by all the inspectors, and a true copy of such statement shall be immediately filed by them in the office of the clerk of the town or city.

§4. The original statements, duly certified as aforesaid, shall be delivered by the inspectors, or one of them to be deputed for that purpose, to the supervisor, or, in case there be no supervisor, or he shall be disabled from attending the board of canvassers, then to one of the assessors of the town or ward, within twenty-four hours after the same shall have been subscribed by such inspectors, to be disposed of as other statements at such election, are now required by law.

§5. So much of articles first, second, third, and fourth, of title fifth, of chapter one hundred and thirty, of the act entitled, "An act respecting elections other than for militia and town officers," and the acts amending the same, as regulates the duties of County Canvassers and their proceedings, and the duty of County Clerks, and the Secretary of State, and the Board of State Canvassers, shall be applied to the canvassing and ascertaining the will of the people of this State in relation to the proposed convention; and if it shall appear that a majority of the votes or ballots given in and returned as aforesaid are against a convention, then the said canvassers are required to certify and declare that fact by a certificate, subscribed by them, and filed with the Secretary of State; but if it shall appear by the said canvass that a majority of the ballots or votes given as aforesaid are for a

convention, then they shall by like certificates, to be filed as aforesaid, declare that fact; and the said Secretary shall communicate a copy of such certificate to both branches of the Legislature, at the opening of the next session thereof. Yours, respectfully,

GIDEON J. TUCKER, Secretary of State.

SHERIFF'S OFFICE, }

NEW YORK, August 4, 1858. }

The above is published pursuant to the notice of the Secretary of State, and the requirements of the Statute in such case made and provided.

JAMES C. WILLET,

Sheriff of the City and County of New York.

☞ All the public newspapers in the county will publish the above once in each week until the election, and then hand in their bills for advertising the same, so that they may be laid before the Board of Supervisors, and passed for payment. See Revised Stat. vol. 1, chap. 6, title 3, article 2d, part 1st, page 140.

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